

25STCV19810 25STCV19810

County: los-angeles

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV19810

DEMARCUS

PETERS vs BMW OF NORTH AMERICA, LLC, et al.

August

6, 2026

8:30

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NATURE OF PROCEEDINGS:

DEFENDANT BMW OF NORTH AMERICA, LLC'S MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES (SET ONE) AND SPECIAL INTERROGATORIES (SET ONE) BY BMW OF NORTH AMERICA, LLC; REQUEST FOR SANCTIONS. DEFENDANT BMW OF NORTH AMERICA, LLC'S MOTION TO COMPEL PLAINTIFF'S RESPONSES TO

DEFENDANT'S REQUEST FOR PRODUCTION, SET ONE (1) AND REQUEST FOR SANCTIONS.

RULING:

The Court orders the Motion requests off calendar considering service of responses, and denies the sanctions requests by finding substantial justification.

Plaintiff to give notice.

I.

BACKGROUND

On June 30, 2025, DEMARCUS PETERS (Plaintiff) filed a Lemon Law Complaint against BMW OF NORTH AMERICA, LLC and SOUTH BAY BMW MINI (Defendants), alleging Causes of Action under the Song-Beverly Consumer Warranty Act (Civ. Code §§ 1790-1795.8), along with a Fifth Cause of Action for Negligent Repair, and a Sixth Cause of Action for Fraudulent Inducement - Concealment.]

Plaintiff alleges entering into warranty provisions, as to a 2019 BMW 430i vehicle that Defendant manufactured, which had defects, including engine, transmission, and electrical. Plaintiff further alleges that Defendant BMW failed to repair the vehicle within a reasonable number of attempts and did not promptly replace it or make restitution.

On January 26, 2026, Defendant BMW OF NORTH AMERICA, LLC (Defendant) filed the Motions to Compel initial responses to form and special interrogatories, and document requests. Defendant also requests monetary sanctions against Plaintiff and counsel (\$2,310.00, as to each Motion).

Plaintiff opposes, based on arguments such as that counsel served late responses, due to excusable involving staff turnover, such that the Motions are moot, and sanctions would be unjust.

II.

LEGAL STANDARD

A motion to compel initial discovery responses need only show that discovery was properly served on the opposing party, the time to respond expired, and no response was served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906; Code Civ. Proc., §§ 2030.290 [compelling initial interrogatory responses], 2031.300 [compelling initial document requests].)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.) But where satisfactory responses have been served after the filing of motions to compel, courts nonetheless may award sanctions. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 409 (Sinaiko); County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256 [citing Sinaiko regarding court considering supplemental responses served after motion]; Cal. Rules of Court, rule 3.1348(a).)

III.

ANALYSIS

Defendant contends that the Plaintiff failed to service responses to form and special interrogatories and document requests, and Defendant requests monetary sanctions.

Plaintiff opines that the Motion is moot now that late responses have been served. Additionally, Plaintiff argues that staff turnover is an excuse for lateness and for avoiding sanctions.

Where respondents served untimely discovery responses after parties have filed motions to compel responses, courts have broad discretion as to ruling. (Sinaiko, *supra*, 148 Cal.App.4th, p. 409; County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256.) Under some circumstances, it may be an abuse of discretion for a court to treat a motion

as being one to compel further responses, without requiring a separate motion.
(*St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 778.)

As for sanctions, courts may determine substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1297.) Analogously, to constitute grounds for relief under Code of Civil Procedure section 473, attorneys’ failures must be accompanied by a factor outside their control, in an unmanageable situation, such as mistakes of clerical staff. (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1424.)

Here, the Motions are moot after service of discovery responses. Additionally, the Court finds substantial justification for avoiding sanctions, based upon staff turnover beyond the handling attorney’s control.

IV.

CONCLUSION

Accordingly, the Court orders the Motions off calendar and denies the requests for monetary sanctions.